

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BRAZIL

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Brazil, grounded in the environmental-licensing and constitutional system and documented campaigns

This guide is written in English but uses the Brazilian legal terms you will actually encounter (licenciamento ambiental, EIA/RIMA, ação civil pública, and so on), each defined on first use and in the Glossary. It describes the federal framework and uses examples from across Brazil; states and municipalities have their own rules, so check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in parentheses right where you first meet it — no flipping to the back required.

A note on timing. Brazil’s general environmental-licensing rules changed in 2025 (Law 15.190/2025) and parts of that law are being challenged in the Supreme Court (**STF**). This guide explains the durable constitutional framework and the licensing stages, and flags where the 2025 changes matter — but check the current state of the rules before you rely on any detail.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in Brazil. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. In August 2016, after years of resistance led by the **Munduruku** people, the federal environmental agency **IBAMA** (the federal environmental agency; licenses and enforces for federal-level projects) shelved the licensing of **São Luiz do Tapajós** — the largest hydroelectric dam then planned for the Amazon — because it would have flooded Indigenous land the Constitution protects. Across the country, communities, the **Ministério Público** (the independent Public Prosecutor’s Office), and their allies have forced projects to be refused, suspended, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don’t know HOW to make opposition effective. They speak once at the **audiência pública** (public hearing), then give up. They assume “the agency will refuse it” without building public pressure or triggering the Public Prosecutor. They generate coverage without a strategy. They organise people and then lose them to burnout after four months.

This guide shows what actually works — in the Brazilian system.

If You're New to This — Don't Be Shy

Nobody is born knowing how an environmental assessment works. The communities in this guide weren't experts when the projects landed on them — they learned it, meeting by meeting, filing by filing, because the thing at stake was theirs. That is the only qualification this work requires.

So if this is your first fight: don't worry, and don't be shy. You are allowed to file comments, demand documents, call reporters, and pack a hearing. The participation windows exist for you, not for specialists. You will make mistakes; every winning campaign did. Start small — one conversation, one document request, one meeting — and let the guide carry you from there. You want it? Go and get it.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

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STEP 1: TARGET IDENTIFICATION
↓
STEP 2: DOCUMENTATION (proof of harm)
↓
STEP 3: LOCAL OPPOSITION BUILD (organised community)
↓
STEP 4: LEGAL CHALLENGES (Public Prosecutor / court pressure)
↓
STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory
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Why the legal step matters so much here: Brazil gives communities an unusually powerful set of levers. The **Ministério Público** — a constitutionally independent institution with no equivalent in many countries — can open an investigation (**inquérito civil** (the civil investigation the Ministério Público can open to gather evidence and act)) and bring a **ação civil pública** (public civil action) to suspend or annul a licence, and communities can *ask it to act* at no cost to themselves. Any citizen can bring an **ação popular** (an action any individual citizen can bring (Law 4.717/1965) to annul an act that harms the environment or public patrimony) to annul an act that harms the environment. Projects affecting **Indigenous** or traditional communities require **free, prior and informed consultation** under **ILO Convention 169**. And the Constitution itself (article 225) guarantees an ecologically balanced environment and requires an impact study for potentially damaging projects. No Brazilian campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because the government treats it as a strategic priority, because the developer's own study drives the assessment, or because political and economic pressure to say yes is intense.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins suspensions, conditions, redesigns, and delay. Brazil has a specific device — the **suspensão de segurança** (a device by which the government can ask a court president to suspend a court ruling — without the merits being judged — by alleging serious harm to public order, health, security, or the economy) — that lets the government keep a project going even after a court has ruled against it; you need to understand it (Section 10). Where there is genuine misconduct — bribery, an undeclared interest, **improbidade administrativa** (administrative misconduct by a public official (Law 8.429/1992) — unlawful enrichment, loss to the public purse, or breach of the duties of honesty and impartiality) — that is a different and more serious problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Brazil, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

Brazil is a federation with three levels of government, and environmental protection is a shared responsibility.

- **The município (municipality), led by the *prefeito* and *câmara municipal*.** The municipality sets local land use (the **Plano Diretor** (a municipality's master plan setting land use), the master plan) and licenses projects with local-only impact.
- **The estado (state), through its environmental agency (an *OEMA*, e.g. a state environment secretariat or institute).** State agencies run the **environmental licensing** (*licenciamento ambiental*) of most projects.
- **The União (federal government), through IBAMA.** IBAMA licenses projects with national or interstate impact or special sensitivity — big dams, major roads and ports, offshore oil, and anything affecting **Indigenous lands**, the marine zone, or two or more states.

Which body licenses a project is set by law (mainly *Lei Complementar 140/2011* and **CONAMA** (the National Environment Council, which sets environmental resolutions and standards) resolutions). Alongside the licensing agency, several specialised bodies must be heard for sensitive projects: **FUNAI** (the National Foundation of Indigenous Peoples) for the “Indigenous component,” **ICMBio** (the federal agency managing conservation units (protected areas)) for federal protected areas (**unidades de conservação**), the **Fundação Palmares** for **quilombola** (Afro-descendant traditional) communities, and **IPHAN** for cultural heritage.

So which body decides your project? - A local building or small works → the **município**. - A factory, a quarry, a medium road, a landfill, agribusiness infrastructure → usually the **state agency (OEMA)**. - A big dam, a major highway or port, offshore oil, a transmission line crossing states, or anything touching an **Indigenous land** or a federal protected area → **IBAMA**, with FUNAI/ICMBio/Palmares/IPHAN heard as relevant.

How a decision is actually made — the three licences

For projects needing full licensing, the environmental agency issues three licences in sequence:

1. **Licença Prévia (LP)** — the *preliminary* licence. It approves the project's location and basic concept and its **environmental viability**. This is the most important stage to fight: it is where the big questions (should this be here at all?) are decided, usually on the basis of the **EIA/RIMA** and the **audiência pública**.
2. **Licença de Instalação (LI)** — authorises *construction* once detailed plans and conditions (**condicionantes** (the conditions attached to an environmental licence)) are set.
3. **Licença de Operação (LO)** — authorises the project to *operate*.

The impact study. A project likely to cause significant degradation needs an **EIA** (*Estudo de Impacto Ambiental* — the full technical study) and its plain-language summary, the **RIMA** (*Relatório de Impacto Ambiental*). There must be an **audiência pública** where the community can question the study and put objections on the record. A weak or incomplete EIA is one of the strongest grounds to stop or delay a project.

Consultation. Projects affecting Indigenous peoples, **quilombolas**, or other traditional communities require **free, prior and informed consultation** (*consulta prévia*) under **ILO Convention 169**, according to each people's own protocol. Skipping or faking this consultation is a frequent and powerful ground of challenge.

What changed in 2025. Law 15.190/2025 (called the *Lei Geral do Licenciamento Ambiental*, and by its critics the “*PL da Devastação*”) introduced faster and lighter tracks — a self-declared **Licença por Adesão e Compromisso (LAC)** for lower-impact projects, and a **Licença Ambiental Especial (LAE)** fast-track for “strategic” projects. Parts of it are being challenged at the STF. Check which regime applies to your project.

The rulebook — the laws that decide the outcome

- **The Constitution, article 225** — everyone's right to an ecologically balanced environment; the State and society must defend it; an impact study is required for potentially degrading projects. **Article 231** protects Indigenous lands and forbids the permanent removal of Indigenous peoples from them.
- **The environmental-licensing rules** — the National Environmental Policy (*Lei 6.938/1981*), the CONAMA resolutions, and now Law 15.190/2025.
- **The conservation-unit law (SNUC, Lei 9.985/2000)** — protected areas and their buffer zones.
- **ILO Convention 169** — free, prior and informed consultation of Indigenous and traditional communities.
- **The collective-action laws** — the **Ação Civil Pública** law (*Lei 7.347/1985*) and the **Ação Popular** law (*Lei 4.717/1965*) — the tools that get harm in front of a court.

Follow the money — why the system often leans toward “yes”

- **Municipalities** gain jobs, tax (**ICMS**), and — for dams, mines, and oil — **royalties** (payments to states and municipalities from oil, mining, and hydro, creating a financial incentive to approve) and compensation payments, so there is often intense local pressure to approve.
- **The federal and state governments** promote energy, mining, agribusiness, and infrastructure, and can label a project “strategic,” which speeds licensing and hardens political backing.
- **Developers** are frequently large state or private companies with the resources to fund the studies and the lawyers who prepare and defend the project.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The Ministério Público** — the independent Public Prosecutor’s Office (the federal **MPF** and the state MPs). It can open an **inquérito civil**, sign a binding clean-up agreement (**TAC**, *termo de ajustamento de conduta*), and bring a **ação civil pública** to suspend or annul a licence. It is the single most important accountability actor for communities — and you can trigger it.
- **The courts** — the **Justiça Federal** (for federal and Indigenous matters) and state courts, up through the regional federal courts (**TRFs**), the **STJ**, and the Supreme Court (**STF**).
- **The audit and control bodies** — the **TCU** (federal audit court) and state audit courts (TCEs); the **CGU** (federal internal-control and anti-corruption body).
- **The Defensoria Pública** — public defenders, who can act for affected communities.

The Clock — Every Deadline That Matters

The process runs on short, unforgiving windows, and one principle governs them all: **object early and comprehensively**. Arguments never placed in the participation record are far weaker later — points not raised in the public windows can be barred or discounted — so file everything, in every window, and keep every receipt. Confirm each figure below against the actual notice or with counsel the day it becomes relevant; notices set the live dates.

Stage	Your window	The trap
Licensing stages (LP → LI → LO)	Each stage has its own participation moments — fight all three	A lost LP fight can still be won at LI/LO
Audiência pública	As convened in the licensing notice — demand one where allowed	The record made here feeds the MP and the courts
Mandado de segurança	120 days from knowledge of the illegal act	The constitutional writ’s hard deadline
Representation to the Ministério Público	Any time — the MP can file the ação civil pública	The MP is Brazil’s strongest litigation engine; feed it evidence
LAI information request	20 days (+10 extension) statutory response	Denials are appealable — appeal them

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Brazil, the variable most likely to push a campaign above these ranges is getting the **Ministério Público** to act on a real defect — a fake or missing **consulta prévia** (free, prior and informed consultation of Indigenous, quilombola, and traditional communities under ILO Convention 169, run by the State according to the community’s own protocol), a fatally weak **EIA**, or a project unlawfully sited on protected or Indigenous land (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (BRL)	What “Success” Means
Documentation Only	5-10%	3-4 months	R\$18K	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	R\$45K	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	R\$0-60K	Slow; strong if the MP takes it up
Media Only	10-15%	3-6 months	R\$20K	Public knows, but no action
Docs + Opposition	25-35%	12 months	R\$60K	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	R\$60K	Stronger legal arguments, slower
Opposition + Legal	35-45%	12-18 months	R\$90K	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	R\$65K	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	R\$95K	Licence suspended/refused/modified or project delayed

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: the **Ministério Público** litigates at no cost to the community, and an **ação popular** can be brought by a single citizen — so the “Legal” figures are not a hard floor. The biggest single move a Brazilian campaign can make is a well-documented petition to the MP.

STEP 1: TARGET IDENTIFICATION

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: “Environmental damage” But: “The reservoir would flood 12 hectares of standing forest and the breeding habitat of a species on the national threatened-species list, plus part of a **quilombola** community’s land.”

Not: “Pollution” But: “The plant will emit an estimated [X] of fine particles over the nearest homes of 1,500 people, in an area already near the air-quality limit.”

Not: “Community harm” But: “The project takes 40 hectares used by riverside (*ribeirinho*) families for fishing and farming and cuts their access to the river.”

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to an **Indigenous land**, a **quilombola** community, a **conservation unit**, or a threatened species also opens a **specific legal front** (consultation rights; the SNUC rules; the Constitution).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The state environmental agency (OEMA)** — for the **licenciamento** of most projects.
- **IBAMA** — for big or interstate projects, offshore oil, and anything affecting **Indigenous lands** or federal protected areas.
- **The município** — for local-impact projects (via the **Plano Diretor** and a local licence). And note who else must be heard: **FUNAI** (Indigenous component), **ICMBio** (conservation units), **Fundação Palmares** (quilombolas), **IPHAN** (heritage).

Write it down concretely: “The state agency will decide the **Licença Prévia** after the **audiência pública** on [date]. IBAMA is involved because the site borders an Indigenous land, so **FUNAI** must assess the Indigenous component and **consulta prévia** is required.”

Question 3: What Specific Action Stops It?

Not: “Stop the project” But: “Persuade the agency to refuse the **Licença Prévia** for lack of environmental viability” — or, if refusal is unrealistic, “obtain strict **condicionantes**, real compensation, and a redesign.”

Not: “Protect the environment” But: “Show the **consulta prévia** was skipped or faked, or that the **EIA** is fatally deficient, and get the **Ministério Público** to bring a **ação civil pública** to suspend the licence.”

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the process is unlawful, become the ground for the MP or a court to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the **EIA/RIMA** goes on public view, the **audiência pública**, the decision on each licence (LP, then LI, then LO), and the window to react. Because licensing runs in three stages, there are **several moments to intervene** — and a licence can be challenged in court or before the MP after it is issued. The LP stage is the decisive one; don’t wait for the LI.

Question 5: Are There Documented Financial or Policy Pressures?

This is the tilted-system assessment question. Know it BEFORE you organise: - Has the project been labelled “**strategic**” or fast-tracked (e.g. under the new **LAE**), hardening political backing? - Is the **EIA** funded and written by the developer only? - Does the município depend on the project for jobs, **ICMS**, or **royalties**? - Is the developer a big state or private company with deep resources for studies, lawyers, and appeals? - Is there any sign the government would use a **suspensão de segurança** to keep works going despite a court ruling?

Why this matters: if strong “strategic project” backing or developer-controlled studies are present, opposition must overcome different barriers (Section 10). It doesn’t mean opposition can’t work — it means realistic expectations and, often, a focus on the **consulta prévia** and **EIA** defects, on conditions, and on the **Ministério Público**, rather than a straight political refusal.

Plug these in — where to find and track the file:

Find and track the project: - The **EIA/RIMA** and licensing file (from the licensing agency — IBAMA at gov.br/ibama, or the state agency). - The technical opinions of **FUNAI**, **ICMBio**, and **Fundação Palmares** where relevant.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

The Three Documentation Layers

Documentation turns vague opposition (“This is bad”) into undeniable evidence (“This specific harm will occur to these specific people/places at these specific costs”). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

What it is: documentation of existing conditions BEFORE the project begins — including who lives on and uses the land.

Why it matters: developers claim “the area is empty” or “already degraded.” Baseline documentation proves what — and who — was there, and it cannot be reconstructed later.

Documented case — the Munduruku and the São Luiz do Tapajós dam

São Luiz do Tapajós would have been the largest hydroelectric dam planned for the Amazon, on the Tapajós River in Pará. Its supporters treated the affected land as open territory. The **Munduruku** people made that impossible. Because the government was slow to demarcate their land, the Munduruku carried out their own **self-demarcation** (*autodemarcação*) — physically marking and mapping the boundaries of the **Sawré Muybu** Indigenous territory — and documented that the reservoir would flood their villages. That community-produced record went into the official process.

It changed the outcome. In April 2016, **FUNAI** formally recognised the Sawré Muybu Indigenous Land; the same day, IBAMA suspended the licensing. Drawing on FUNAI’s opinion, recommendations from the **Ministério Público Federal**, and its own technical staff — and finding the developer’s impact study fatally incomplete — **IBAMA shelved (arquivou) the licensing on 4 August 2016**, because flooding the Indigenous land would force the removal of Munduruku villages, which the Constitution forbids. Without a licence, the dam could not be auctioned or built. The Munduruku, with allies, treated it as a landmark win. (The demarcation still faced later challenges, and other dams remained proposed on the river — a reminder that a win often has to be defended.)

Why it matters for you: the Munduruku’s own documentation — who lived there and what would be lost — was the thing the agency and the prosecutors could act on. Documenting existing conditions, including human occupation, is the

foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim the site is “already degraded” and baseline cannot be reconstructed later. A workable approach: monthly surveys across at least a season cycle — more if you can — of the project area plus upstream/downstream reference points; a species inventory with GPS locations of key habitat, flagging anything on the national or state threatened-species lists that the developer’s **EIA** omitted; a record of any **Indigenous, quilombola, or ribeirinho** (a riverside/riverine community that depends on the river for fishing and farming) occupation and use of the land and river; proximity to any **conservation unit** or its buffer zone; and hydrology (pH, dissolved oxygen, temperature, seasonal flow). Typical cost is around R\$15,000-20,000 for a *consultoria ambiental*, GPS, and water-testing supplies — reducible with knowledgeable community members, university partners, and naturalists. Dated, same-spot seasonal photographs and geo-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just “something bad” but “specifically THIS BAD in THIS WAY” — and it maps directly onto what the **EIA** must properly assess.

Use the developer’s own words and the assessment rules. Powerful, documentable weak points in Brazilian assessments include: - **The EIA’s completeness.** The impact study must genuinely assess the project’s significant effects and alternatives. An EIA that omits an impact, understates it, or fails to show environmental viability can be sent back or become the ground to suspend a licence — this is part of what sank São Luiz do Tapajós. - **Consultation.** If the project affects Indigenous, **quilombola**, or traditional communities and the **consulta prévia** under ILO Convention 169 was skipped, rushed, or run by the developer instead of the State, that is a strong and specific defect. - **Cumulative impacts.** Projects are often assessed in isolation; showing the combined effect with other nearby projects (as with the dams and mines on the Xingu and Tapajós) is frequently the gap in the developer’s study.

Convert each of the developer’s admissions (“temporary disturbance,” “limited flooding”) into a quantified prediction against your baseline.

Outcome (illustrative): an **EIA** found incomplete on species, water, cumulative effects, or consultation can be sent back, adding months or years — or can ground the suspension of the licence by the **Ministério Público** or a court.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. “X hectares affected” matters less than “an estimated 45 additional respiratory cases a year, and R\$X of health-system cost” — or “the fishery that feeds 200 families destroyed.”

Method: use recognised air-quality or water modelling and the public-health literature to translate emissions or river changes into health and livelihood outcomes, then attach costs — additional respiratory and cardiovascular cases, lost fishing and farming income, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-livelihood analysis can move a município, feed the **Ministério Público**, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage a *consultoria ambiental* (or use knowledgeable community members, university researchers, and naturalists); set a seasonal survey schedule; document conditions AND human occupation/use. **Deliverable:** a 20-30 page baseline report with species/habitat inventory, a record of Indigenous/quilombola/ribeirinho use, water-quality data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **EIA/RIMA** and the licensing file; identify specific impacts; test the study against the rules (completeness, consultation, cumulative effects, protected areas). **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the developer’s own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the licence.
- **Only environmental data.** Add health, livelihood, and human-occupation impacts — the arguments that move decision-makers, the MP, and the public.
- **No independent check.** A report the agency can dismiss as “activist material” is far stronger after an independent expert or a university reviews it.
- **Ignoring the developer’s own admissions.** Their **EIA/RIMA** is your best source; quote it against itself.

Documentation Budget Breakdown (BRL)

Item	Cost	Notes
Consultoria ambiental (baseline + species ID)	R\$12,000	Threatened-species and habitat survey
GPS / survey equipment	R\$1,500	Mapping/documentation
Water-quality testing supplies	R\$1,500	Sampling across seasons
Independent / university expert review	R\$3,000	Credibility
Printing/distribution	R\$1,000	Copies for decision-makers
TOTAL	R\$19,000	Reducible with university partners and community members

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Critical Insight About Organising

Most opposition campaigns fail not because they can’t build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don’t join movements from flyers; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person (not by message) for an hour. Ask: “What’s your biggest concern about this project?” Listen — don’t pitch. Ask what they’d be willing to do. Each person has a different concern (land, water, fishing, health, a place they love, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern.: - **Land/livelihood group** — land, farming, fishing, river access - **Water group** — the river, water supply, flooding, contamination - **Health group** — air quality, dust, water-borne disease - **Territory/rights group** — Indigenous, **quilombola**, or **ribeirinho** rights and **consulta prévia** Each group meets monthly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Form or Partner With an Association

In Brazil, a **registered association** (*associação*) is the natural vehicle: it can speak for the community, collect donations, and — importantly — an association in existence for at least a year, with an environmental or community purpose, has **standing to bring a ação civil pública**. Formalise one (a name, statutes, a *diretoria*), or partner with an existing local association, a community/Indigenous organisation, or a religious body (in the interior, the **CPT** and diocesan bodies are

often key allies).

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (*reunião / assembleia*)

Hold a community meeting where people set out their concerns to themselves, to the **prefeito** and councillors, and to press. A serious, informational meeting carries weight. Typical 3-hour shape: welcome → project explanation → community concerns (each person 3-5 minutes) → expert Q&A (an ecologist, a health voice, a lawyer) → next steps. For Indigenous or traditional communities, follow the community's own **consultation protocol** (*protocolo de consulta*).

Step 2b: Opposition Materials (Factsheets)

One page. Decision-makers won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print 1,000; distribute at markets, churches, the *prefeitura* noticeboard, health posts; post a digital version. Cost: ~R\$800.

Step 2c: The Public Hearing and a Petition to the Prosecutor (the decisive record)

Two things matter most here. First, get people to **speak and file written objections at the *audiência pública*** (and demand one if it hasn't happened), each raising real grounds — an incomplete **EIA**, a skipped **consulta prévia**, harm to a protected area, cumulative impacts. Second — and this is the strongest single move in Brazil — **take a documented complaint to the *Ministério Público*** (federal **MPF** if Indigenous land or a federal project is involved; the state MP otherwise) asking it to open an **inquérito civil**. A *pétition* for the wider count helps too. Cost: ~R\$100.

Step 2d: Media Coverage at Launch

Release data + hearing objections + the fact you've gone to the MP = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and rights organisations — the **ISA** (Instituto Socioambiental), local and national groups, university research groups, Indigenous organisations (e.g. an **APIB**-affiliated body), fishers' colonies (*colônias de pescadores*), rural-worker unions, the **CPT** (Comissão Pastoral da Terra), and quilombola associations — plus tourism operators and businesses that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks: - **ISA / an environmental group**: "We need help analysing the **EIA** and the cumulative impacts — can you review it?" - **A university group**: "Would your researchers assess the health or hydrology impacts independently?" - **An Indigenous / quilombola organisation**: "The **consulta prévia** was not done properly — will you document that and join a complaint to the **MPF**?" - **Fishers / rural workers**: "This threatens the fishery and the land — will you speak at the hearing and sign the complaint?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental analysis to the NGO/university; rights and **consulta** to the Indigenous/quilombola organisation; livelihood to the fishers/rural workers; media to whoever has the contacts; the legal/MP track to the lawyer and the association. Sequence activities so each builds momentum (coalition launch → data release → act → hearing).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (*manifestações*)

Regular, same time and place, growing attendance — outside the *prefeitura*, the licensing agency, or at the site. Handle logistics: notice to the authorities where required, marshals, accessibility, and a sound system for 100+. Momentum matters: “50 gather” becomes “gathering grows to 200.”

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (hearing objections → expert finding → coalition growth → act → the MP opens an inquiry).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: monthly (not weekly) meetings; celebrate milestones; fund one part-time coordinator so volunteers don’t carry logistics; schedule breaks; keep a public progress tracker. Campaigns that bring in a part-time coordinator when founders tire tend to last for years; those that don’t often collapse around month six.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. In Brazil, respect that Indigenous and traditional communities decide by their own protocols — don’t let an outside NGO speak over them.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (500 objections filed, a 200-person act, the **MPF** opening an **inquérito civil**) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (BRL)

Item	Cost
Factsheet printing (1,000 copies)	R\$900
Website/email hosting (annual)	R\$600
Venue / assembly costs	R\$1,500
Outreach travel (often long distances)	R\$4,000
Objection/petition materials	R\$150
Demonstration supplies (signs, sound)	R\$2,000
Coalition meeting costs	R\$1,500
Part-time coordinator stipend (part-time, 12 months)	R\$24,000
Social-media management (3 months part-time)	R\$6,000
Fundraiser/event costs	R\$2,500
TOTAL	R\$43,150

Funding the campaign. Money typically comes from four places: individual donations (local collections and online *vaquinhas* such as Vakinha or Apoia.se, plus dedicated legal-cost appeals); grants from environmental and rights funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered association can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~R\$24,000.

STEP 4: LEGAL CHALLENGES — THE PUBLIC PROSECUTOR, THE COURTS, AND CONSULTATION

Plug these in — who fights beside you (many free of charge):

Legal help and the Public Prosecutor: - The **Ministério Público Federal (MPF)** — *mpf.mp.br* — and your **state Ministério Público**: take a documented complaint (*representação*) asking for an **inquérito civil**. This is the strongest, lowest-cost move. - The **Defensoria Pública** — public defenders, who can act for affected communities. - **ISA** (Instituto Socioambiental) — *socioambiental.org* — legal and technical support on Indigenous, quilombola, and environmental

matters.

Records and transparency: the **Lei de Acesso à Informação** (Law 12.527/2011); the federal **Portal da Transparência** (portaltransparencia.gov.br) and state/municipal equivalents.

Integrity and anti-corruption: the **Ministério Público**; the **Polícia Federal**; the **CGU** (gov.br/cgu); the **TCU** (tcu.gov.br) and state audit courts.

Defender protection: the federal **Programa de Proteção aos Defensores de Direitos Humanos**; the **CPT** (Comissão Pastoral da Terra); Indigenous and human-rights organisations. Report threats to the **Polícia Federal** and the **MPF**.

- **The Ministério Público taking up your case:** the single strongest position — it investigates and litigates at no cost to you, with powers you don't have.
- General or less specialised representation: 25-35%

Brazilian legal strategy has three tracks, and the first is unusually powerful here.

TRACK 1: THE PUBLIC PROSECUTOR AND PARTICIPATION (the front door)

Most Brazilian environmental fights are won or shaped here — and it can cost the community nothing.

- **Put objections on the record at the *audiência pública*.** Speak, and file written objections raising real **legal grounds** — an incomplete **EIA**, a skipped **consulta prévia**, harm to a **conservation unit** or Indigenous land, ignored cumulative impacts. Demand a hearing if none was held. This builds the record.
- **Petition the *Ministério Público* to open an *inquérito civil*.** This is the strongest single move available to a Brazilian community. Take a documented complaint to the **MPF** (if the project touches Indigenous land, a federal protected area, or a federal licence) or the state MP. A prosecutor (*promotor* or *procurador*) can then: **requisition documents and studies**; issue a **recomendação** to the agency; negotiate a binding **TAC** (*termo de ajustamento de conduta*) forcing changes; or file a **ação civil pública** to suspend or annul the licence. The MP acts in the public interest — you don't pay, and it has investigative powers you don't.
- **Use FUNAI, ICMBio, and Palmares.** If a specialised body has flagged a problem — as **FUNAI** did over the Indigenous component of São Luiz do Tapajós — that opinion is powerful; get it into the record and to the prosecutor.

Why this track matters: filing well — specific, on time, grounded in the Constitution, the licensing rules, and the evidence — plus triggering the **Ministério Público**, often does more than any amount of noise, and it builds the record you'll need for Tracks 2 and 3.

TRACK 2: CONSULTATION AND THE IMPACT-STUDY LEVERS (the strongest cards)

Three grounds make this the most powerful legal tool available to Brazilian communities.

1. **Free, prior and informed consultation (*consulta prévia*, ILO Convention 169).** A project affecting Indigenous, **quilombola**, or other traditional communities requires genuine consultation, conducted by the State, according to the community's own **protocol** (*protocolo de consulta*) — *before* decisions are made. Skipping it, rushing it, or letting the developer run it is a serious, specific defect. The **Ministério Público** sued over Belo Monte precisely because Indigenous peoples were not properly consulted, and it has repeatedly challenged projects on this ground.
2. **Unlawful siting on protected or Indigenous land.** The Constitution (article 231) forbids the permanent removal of Indigenous peoples from their lands. That constitutional bar — combined with **FUNAI**'s recognition of the **Sawré Muybu** land — is what led IBAMA to shelve **São Luiz do Tapajós**. Harm to a **conservation unit** (SNUC) or its buffer zone is a related strong ground.
3. **A fatally deficient EIA.** The **EIA** must genuinely assess significant impacts, alternatives, and cumulative effects, and demonstrate **environmental viability**. An impact study that omits an impact, understates it, ignores cumulative effects, or fails to show viability is a strong ground to suspend or refuse the licence — IBAMA archived São Luiz do Tapajós partly because the study lacked the content needed to judge viability.

Standing and cost — why you can get to court. The **Ministério Público** brings most environmental **ações civis públicas** and litigates for free; associations (in existence a year, with an environmental purpose), the **Defensoria Pública**, and public bodies also have standing; and any citizen can bring an **ação popular**. A court can grant a **liminar** (an urgent injunction) to **suspend** a licence quickly. This means a community with a genuine legal point can get it before a court — often without paying for it.

TRACK 3: THE COURTS (ação civil pública, ação popular, liminar)

When a licence is unlawful, it is challenged in court — usually by: - a **ação civil pública** (*Lei 7.347/1985*) brought by the **Ministério Público**, an association, the Defensoria, or a public body, to suspend or annul the licence and obtain repair of harm; or - a **ação popular** (*Lei 4.717/1965*) brought by any individual citizen to annul an act that harms the environment or public patrimony.

Cases affecting Indigenous lands or federal projects go to the **Justiça Federal**, up through the **TRFs**, the **STJ**, and the **STF**. A **liminar** can freeze a licence or works pending the merits. **Be aware of the counter-move:** the government can ask a court president for a **suspensão de segurança**, which can put a favourable **liminar** on hold — without the merits being decided — by alleging serious harm to public order or the economy. This device repeatedly kept Belo Monte's works going despite rulings for the Ministério Público (see Section 10). Plan for it: a win at first instance may not hold, so keep opposition and media pressure alive alongside the case.

Legal Strategy Decision Tree

START: Is an audiência pública or a licence (LP/LI/L0) in process or issued?
└ IN PROCESS → File objections NOW (Track 1). Demand a hearing if none was held.
└ ISSUED → You can still challenge the licence in court or via the MP.

Q1: Is there a legal defect the MP or a court could act on?
└ NO (lawful process, you just disagree) → No strong challenge; focus on opposition + media.
└ UNCLEAR → Take the file to the Ministério Público and to an environmental lawyer.
└ YES (skipped/faked consulta prévia; unlawful siting on Indigenous land or a conservation unit; a fatally deficient EIA; ignored cumulative impacts) → Continue.

Q2: Budget?
└ R\$0 → Petition the MINISTÉRIO PÚBLICO to open an inquérito civil and act; or file an ação popular as a citizen. Both are low/no cost.
└ R\$0-15K → MP track + an association-led ação civil pública with a lawyer.
└ R\$15-60K → Full ação civil pública + expert evidence, combined with opposition + media.

Q3: Are works imminent?
└ YES → Seek a LIMINAR to suspend the licence/works — but plan for a possible suspensão de segurança keeping works going while the government appeals.
└ NO → The action proceeds on the normal timetable.

RECOMMENDED PATHS
Path A — Clear consultation / siting / EIA defect: hand it to the MINISTÉRIO PÚBLICO with a documented complaint + Track 1 record + media. Highest ceiling, lowest cost.
Path B — Arguable but not clear-cut: build opposition + media; take the file to the MP and a lawyer; litigate if a defect crystallises.
Path C — No legal defect: don't litigate. Win it politically, on the record, and in the press.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps: - Litigation alone: 20-30% - Litigation + opposition: 35-45% - Litigation + opposition + media: 50-70% - A clear defect — a skipped **consulta prévia**, unlawful siting on Indigenous land, or a fatally deficient **EIA** — can exceed these (as with São Luiz do Tapajós), though the **suspensão de segurança** can blunt an early win on strategic megaprojects.

A prosecutor or court that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition and no MP behind it reads as a niche dispute. Build opposition; trigger the MP; litigate with it all visible.
- **Not going to the Ministério Público.** In Brazil this is the single most important lever — and communities routinely underuse it.
- **Weak grounds.** “This project is harmful” is an opinion, not a legal ground. “The **consulta prévia** required by ILO Convention 169 was not carried out” is a ground the MP and a court can act on.
- **Assuming an early win is final.** On strategic projects, expect the government to try a **suspensão de segurança**; keep the pressure up.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS

OUTCOMES

Brazil has a strong national and regional press, plus dedicated investigative and environmental outlets, that cover exactly these fights — and a record of that coverage shifting outcomes. On São Luiz do Tapajós, the Munduruku's cause drew national and international coverage, and more than a million people joined the campaign — raising the political cost of pushing the dam through.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION - **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored. - **Good:** "Community mapping shows the reservoir would flood three villages the developer's study didn't count; the agency decides on [date]." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Regional press** and local **TV/radio affiliates** — the audience that reaches your *prefeito* and the state agency.
- **National desks** — *Folha de S.Paulo*, *O Estado de S.Paulo*, *O Globo* — for projects with wider significance.
- **Investigative and environmental outlets** — **Agência Pública**, **Repórter Brasil**, **InfoAmazonia**, **Sumaúma**, **((o))eco** — for deeper accountability and Amazon/territory stories.
- International wires and outlets for megaprojects (they moved the needle on Tapajós and Belo Monte).

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local/regional and specialist reporters (environment, Amazon, human-rights, local-government rounds). **Contact** them first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your readers should know." Then keep the relationship warm over months — a relevant article, a data tip, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (hearing objections / going to the MP)
- Month 3: press event releasing the survey/mapping; expert available
- Month 4: coalition announcement
- Month 5: demonstration coverage
- Month 6: decision-date coverage

Real Media Dynamics (Brazilian grounding)

- **Coverage plus mobilisation can shelve a project:** São Luiz do Tapajós combined the Munduruku's on-the-ground documentation and self-demarcation with sustained national and international coverage — raising the political cost until IBAMA shelved the licence.
- **A live case is a running story:** the Belo Monte litigation, moving through the federal courts for years, kept the project — and the use of **suspensão de segurança** — in the national press and framed the wider debate over Amazon dams.
- **Independent evidence beats the developer's study:** independent ecological, hydrological, or health analysis that contradicts an optimistic **EIA** lets the press write "experts dispute the developer's figures," and decision-makers and prosecutors take notice.

Plug these in — the outlets and desks that cover this beat:

Investigative and environmental media: Agência Pública; Repórter Brasil; InfoAmazonia; Sumaúma; ((o))eco; and the national press (*Folha de S.Paulo*, *O Estado de S.Paulo*, *O Globo*).

Media Measurement
Track cumulative stories and reach month over month.
Success indicators: regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker or prosecutor response.
Failure indicators: no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

HOW THE FIVE STEPS COMPOUND

Now that all five steps are on the table, here is how they stack — and which ones carry the most weight when combined.

Effectiveness Visualization



One important point: a single clear legal defect — most powerfully a missing or faked **consulta prévia**, a project that would unlawfully flood **Indigenous land**, or a fatally deficient **EIA** — can lead a court or the licensing agency to stop a

project even where the politics favour it, because it is applying a constitutional standard the agency cannot ignore. (Be aware that the government can use the **suspensão de segurança** to keep works going while it appeals — see Section 10.)

Step Importance Ranking (When All Combined)

1. OPPOSITION BUILDING (Step 3) ██████████ 25%
Why: creates political pressure, visible to decision-makers, enables other steps
2. DOCUMENTATION (Step 2) ██████████ 22%
Why: provides ammunition for the MP, legal, and media; grounds opposition in facts
3. MEDIA STRATEGY (Step 5) ██████████ 20%
Why: makes opposition/legal/documentation visible, creates political cost
4. LEGAL CHALLENGES (Step 4) ██████████ 18%
Why: the MP and the courts can suspend a licence – and hold the consultation and EIA levers
5. TARGET ID (Step 1) ██████████ 15%
Why: foundation – if wrong, everything fails

Real insight: a large, organised, visible community that has also put well-argued objections on the record at the **audiência pública** and handed the **Ministério Público** a documented complaint is far more powerful than perfect documentation or a brilliant legal argument standing alone.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the Constitution, the licensing rules, and the evidence — that is what gets read and acted on. The complaint to the Public Prosecutor (8F) and the press release (8G) are the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the agency / IBAMA] decides [date]

Hi [Reporter first name],

I follow your coverage of [round / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [independent survey / community mapping] shows [quantified finding – e.g. "the reservoir would flood three villages the EIA didn't count"], and [the agency / IBAMA] decides on [date].

Why it's newsworthy: it's new (just released), specific (affects [# people / hectares / an Indigenous or quilombola community]), and time-sensitive (decision [date]; we've asked the Ministério Público to investigate).

I can send the full report and connect you with [one named expert] for an interview. Would a quick call this week work?

Thanks,
[Name] – [Association] – [phone] – [email]

8B. Letter to the prefeito, a councillor, or the licensing agency

Subject: [Refuse / attach strict conditions to] [project] – process [ref]

To [the Prefeito / the President of the environmental agency / the councillor],

I am a resident of [município] writing about the [project], on which a decision (a [Licença Prévia / Licença de Instalação]) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the flooding of a quilombola community's land and an EIA that fails to assess cumulative impacts and to show environmental viability"].

I am asking you to [specific, achievable action – e.g. "refuse the Licença Prévia for lack of environmental viability," or "require real consultation, strict condicionantes, independent monitoring, and a redesign"].

[If true:] [#] residents filed objections at the audiência pública, [#] organisations share the concern, and we have asked the Ministério Público to open an inquérito civil.

I would welcome a meeting and can share our full evidence.

Respectfully,
[Name], [address in the município], [phone], [email]

8C. Objection at the audiência pública

To: [the environmental agency conducting the audiência pública on [project]]

Written objection to the [project]. Process [ref]. Hearing held [date].

1. Who I am: [name], [address], [interest].

2. Grounds (with evidence):

- [Consulta prévia] – the project affects [Indigenous / quilombola / traditional] communities and the free, prior and informed consultation required by ILO Convention 169 was [not carried out / rushed / run by the developer]. (Attach evidence.)
- [Deficient EIA] – the study omits [impact], understates [impact], ignores cumulative effects with [nearby projects], and does not demonstrate environmental viability.
- [Protected/Indigenous land] – the project harms [conservation unit / Indigenous land], contrary to [SNUC / article 231 of the Constitution].
- [Water / livelihood] – the project destroys [the fishery / farmland / river access] relied on by [#] families.

3. What I ask: that the Licença Prévia be REFUSED for lack of environmental viability; alternatively, [strict condicionantes and a redesign].

[Name] – [contact]
Attachments: [baseline / impact / health report]

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Olá [Name],

I'm [name] with [association] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "review the biodiversity and cumulative-impact sections of the EIA," or "help document that the consulta prévia was not done properly and join our complaint to the MPF," or "have your researchers assess the health impacts independently"].

If helpful, I can send a one-page brief and arrange a short call.

Thanks for considering it,
[Name] – [Association] – [contact]

8E. Records request (Access to Information Law – LAI)

Subject: Request for documents under the Lei de Acesso à Informação (Law 12.527/2011)

To: [the environmental agency / IBAMA / the município]

Under the Access to Information Law (Lei de Acesso à Informação, Law 12.527/2011), I request copies of the following about [project]:

- the full EIA and RIMA and their annexes;
- the technical opinions (pareceres) of the agency, FUNAI, ICMBio, and any other consulted body;
- correspondence between [the agency] and [the developer], [date] to [date];
- the record of the consulta prévia and of the audiência pública;
- the condicionantes and any compliance/monitoring reports.

Please provide these electronically. If any document is refused, please give the legal reasons; I reserve the right to appeal and to take the matter to the Ministério Público.

[Name] – [contact]

8F. Complaint to the Public Prosecutor (the strongest move)

NOTE: In Brazil this is usually the most powerful single step. The Ministério Público investigates and litigates in the public interest at NO COST to you. Use the MPF if the project touches Indigenous land, a federal protected area, or a federal licence; otherwise the state MP. A liminar can suspend a licence quickly – but the government may seek a suspensão de segurança to keep works going.

REPRESENTAÇÃO / NOTÍCIA DE FATO
[Date]

To: [the Ministério Público Federal / the state Ministério Público], [city]

1. The project: [project], licensed by [agency] under process [ref]; decision / licence [LP/LI/L0] [expected/issued] on [date].
2. The facts and evidence: [attach baseline, impact, and health reports; photographs; the EIA/RIMA; the record of the hearing].
3. The legal problems:
 - The consulta prévia required by ILO Convention 169 was [not done / faked].
 - The project would unlawfully harm [Indigenous land (art. 231) / a conservation unit (SNUC)].
 - The EIA is deficient: [omissions / cumulative impacts / no demonstrated viability].
4. What we ask: that the Ministério Público open an INQUÉRITO CIVIL, requisition the full file, and consider a RECOMENDAÇÃO, a TAC, or a AÇÃO CIVIL PÚBLICA to suspend or annul the licence.

[Name / association] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Town / Date]

[LEAD – answer "why now?"]
[Local association] released [study / mapping] today showing [specific finding] affecting [# of people / hectares / an Indigenous or quilombola community].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[The agency / IBAMA] decides on [date]. We have asked the Ministério Público to investigate.

[CALL TO ACTION] To file an objection or support the complaint: [how].
For more: [contact].

CONTACT: [Name / Association / Phone / Email]
ATTACHMENTS: full report, technical summary, methodology, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the budget branches, and the consultation, siting, and EIA levers, plus the role of the Ministério Público and the caution about the suspensão de segurança.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because the government treats it as a strategic priority, because the developer’s own study drives the assessment, or because political and economic pressure to say yes is intense. It rarely means anyone broke the law. Here is how it works — and how communities win anyway.

Important Caveat

This section describes patterns from documented Brazilian dynamics and public policy — “strategic project” backing, developer-funded studies, the **suspensão de segurança** override, and the 2025 licensing rollback. It is not a statistical claim about “X% of all decisions.” Read it as: “where these patterns appear, here is what happens and what it means for opposition.”

What This Tilt DOES (and DOESN’T DO)

DOES: create financial and political incentive to approve (jobs, **ICMS**, **royalties**, “strategic” status); bias information (developer-funded **EIAs** read optimistically); advantage well-resourced developers (better consultants, lawyers, appeals); let the government keep works going despite a court ruling via the **suspensão de segurança**; and — since 2025 — allow faster and lighter licensing (the self-declared **LAC**, the **LAE** fast-track) that reduces scrutiny. **DOESN’T:** guarantee approval; make opposition impossible; remove the constitutional protection of Indigenous lands or the consultation right; or prevent suspensions, conditions, and delay.

Analogy: a tilted system is like playing with the pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your legal grounds cleaner, and the **Ministério Público** engaged early.

Documented Brazilian Dynamics

Documentation and rights can shelve a megaproject (São Luiz do Tapajós). Despite strong federal energy backing, the dam was shelved in 2016 after the Munduruku documented and self-demarcated their land, FUNAI recognised it, and the Ministério Público and IBAMA’s own staff found the project unlawful and unviable. **Lesson:** even a “strategic” project can fall when documentation, rights, and the Ministério Público line up.

The government can override a court — the *suspensão de segurança* (Belo Monte). The Ministério Público repeatedly won rulings against Belo Monte, including over the lack of Indigenous consultation. Yet the government used the ***suspensão de segurança*** — an instrument dating from the military dictatorship, by which the Executive can ask a court president to suspend a ruling *without the merits being judged*, alleging serious harm to public order or the economy — to keep works going. The dam was built. **Lesson:** on strategic megaprojects, an early court win may not hold; keep opposition, the Ministério Público, and media pressure alive together, and expect a long fight.

Developer-funded studies. EIAs are commissioned by the developer. Independent survey and mapping work that contradicts them — a missed community, an understated impact, ignored cumulative effects — is one of the most valuable things a campaign can produce, and can feed a prosecutor’s inquiry and a court case.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary state or municipal licence with genuine scrutiny; no “strategic” label; a clear legal defect; the Ministério Público engaged. → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): strong pro-development policy and a developer-funded **EIA**, but independent evidence is possible and a legal ground (consultation, EIA, siting) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the consultation/EIA/siting grounds and the Ministério Público.

RED FLAG (high tilt): a federal “strategic” megaproject, developer-only studies, heavy political backing, and a real prospect of a ***suspensão de segurança***. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest constitutional ground (consultation, Indigenous land); build power and a record for the next round.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

When licensing and legal routes are exhausted, some Brazilian communities and land and river defenders have engaged in direct action — occupations of construction sites (the Munduruku occupied Belo Monte’s works more than once), blockades, and self-demarcation of territory. This is descriptive of what has occurred, not guidance.

Documented consequences and risks under Brazilian conditions: occupations and blockades are cleared by court-ordered *reintegração de posse* and by police, and can bring criminal charges. More seriously, **Brazil is one of the most dangerous countries in the world for environmental and land defenders:** activists, Indigenous leaders, and rural workers have been threatened and killed in connection with land and resource conflicts (documented for decades by the **CPT** and international monitors). Anyone considering direct action — or even visible organising in a high-conflict area — should take the physical risk seriously, avoid acting alone, and use protection channels: report threats to the **Polícia Federal** and the **Ministério Público**, and seek support from the federal **Programa de Proteção aos Defensores de Direitos Humanos**, the **CPT**, Indigenous organisations, and human-rights groups. Direct action has produced delay and disproportionate attention in documented cases, but on its own rarely stops a project permanently; combined with documentation, the Ministério Público, and media it is more consequential — and safer.

A security-culture note — the aboveground/underground line. Security writers in the resistance literature draw one hard distinction that everyone weighing any form of action should understand. Everything in this guide — the filings, the coalitions, the hearings, the media work — is **aboveground** organizing, and it only works in the open: “There is no way to effectively do aboveground work and keep your identity hidden... Aboveground movements can only build numbers and public solidarity by being public, open, and expressing support of the movement” (dgrnewsservice.org/civilization/repression/an-introduction-to-security-for-activists-organizers-and-revolutionaries/). The same literature is equally blunt about the choice itself: “every person in a resistance movement must decide for her- or himself whether to be aboveground or underground. It is essential that this decision be made; to attempt to straddle the line is unsafe for everyone” (dgrnewsservice.org/resistance/organizational-structures-for-resistance-movements/). Whatever any individual decides, mixing the two modes endangers both that person and everyone organizing beside them — an aboveground campaign is safest, strongest, and most credible when it is exactly what it appears to be.

Honest Assessment

Where the system is tilted, opposition using licensing and legal methods has lower odds of an outright stop — but still reliably wins suspensions or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for the Ministério Público and the courts. And Brazil offers genuine equalisers: a constitutionally independent **Ministério Público** that litigates for free, the constitutional protection of Indigenous lands, the **consulta prévia** right, the **ação popular** open to any citizen, and courts that can suspend an unlawful licence. Neither scenario makes opposition futile.

SECTION 10: WHEN IT’S ACTUAL CORRUPTION (AND HOW TO

EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. It is rarer than ordinary bias, but where it exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. Brazil has strong bodies to receive these matters — but handle them carefully, because getting the facts wrong exposes you to a defamation claim (*calúnia, difamação*).

How big is the problem? The most widely cited figure comes from the World Economic Forum: corruption costs at least **US\$2.6 trillion a year — about 5% of global GDP** — a figure cited before the UN Security Council. Because it is a percentage, the dollar amount grows with the world economy: applied to 2022 global GDP (~US\$101 trillion) it works out to roughly **US\$5 trillion a year**, and a January 2026 Baker Tilly analysis, with global GDP projected at ~US\$115 trillion for 2025, puts it at approximately **US\$5.75 trillion annually**. Roughly one dollar in twenty moving through the world's economy is lost to corruption — and infrastructure, land, and extractives are where it concentrates.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and influence-peddling** (*corrupção, tráfico de influência*) — money, jobs, or favours in exchange for a licence or a decision. Brazil's largest corruption investigation, **Lava Jato**, exposed exactly this on major public works: a cartel of large construction companies paying bribes for contracts. Several of the firms that built major infrastructure — including the Belo Monte consortium — were among those implicated.
- **Administrative misconduct** (*improbidade administrativa, Lei 8.429/1992*) — an official who enriches unlawfully, causes loss to the public purse, or violates the duties of honesty and impartiality. The **Ministério Público** brings these actions.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden financial stake (land near the site, an interest in the developer, a family tie) who does not step aside.
- **The revolving door** — officials and the developer's staff or consultants moving between each other.
- **Improper gifts, hospitality, or campaign funding** flowing from a developer to the people deciding its project.
- **Insider land speculation** — acquiring affected land using non-public knowledge of a coming licence or **Plano Diretor** change.
- **Corporate wrongdoing** (*Lei Anticorrupção, Lei 12.846/2013*) — companies can be held liable for acts against public administration.

Red flags to watch for

- A licence issued despite the technical staff's or FUNAI/ICMBio's negative opinion, with thin or shifting reasons.
- Sudden reversals, rushed timelines, or a licence pushed through quietly.
- An official who did not step aside despite a personal interest.
- Off-record meetings between the developer and decision-makers.
- Gifts, hospitality, trips, or campaign donations flowing from the developer to decision-makers or their families.
- A decision-maker — or a relative — owning affected land or an interest in the developer.
- The same small circle of firms, consultants, and officials recurring across licences.
- Missing files, unusual secrecy, or refusal to disclose under the **LAI**.

How to document and investigate it (follow the money — carefully)

- **Access-to-information requests** under the **LAI** (and, if refused, an appeal and the Ministério Público) for correspondence, technical opinions, contracts, and diaries.
- **Transparency portals** — the federal **Portal da Transparência** and state/municipal equivalents — for contracts, payments, and public servants' data.
- **Campaign-finance records** (the electoral authority's *DivulgaCandContas*) — check whether the developer funded decision-makers' campaigns.
- **Company and land registries** — who owns the affected land and who profits.
- **Council minutes and technical opinions** — compare the decision to the staff/FUNAI/ICMBio recommendation.
- **Build a timeline:** interest or donation → meeting, gift, or contract → decision. Corruption is almost always shown by **pattern and timing**, not a confession.
- **Whistleblowers** often break these stories; report channels (**Ouvidoria**, the CGU, the *disque-denúncia*) offer some protection. Protect them.

The legal lever: an interested or dishonest decision-maker can undo a decision

Two Brazilian features make this powerful. First, a public official who acts with a personal interest, or who violates the duties of honesty and impartiality, commits **improbidade administrativa** — and the resulting act can be annulled and the official sanctioned, on a **ação civil pública** brought by the **Ministério Público**, without any need to prove a cash bribe. Second, an **ação popular** lets any citizen ask a court to annul an act that harms public patrimony or the environment. So documenting an undisclosed interest or a tainted process can be both a **ground to undo the licence** and a matter for the prosecutor.

Where to report it

- The **Ministério Público** (MPF or state MP) — the central actor for both environmental harm and *improbidade*.
- The **Polícia Federal** — for suspected crimes.
- The **CGU** (Controladoria-Geral da União) — federal internal control and anti-corruption.
- The **TCU** (Tribunal de Contas da União) and state audit courts — for misspending on public works.
- **Investigative outlets** — Agência Pública, Repórter Brasil, and the national press — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented corruption story does several things at once: it triggers an investigation; it can undo the licence (*improbidade*, a tainted process); it flips media coverage from “local dispute” to “scandal”; it splits the political support behind the project; and it damages the developer’s reputation and financing. **Exposing a tainted process is often more powerful than arguing inside it** — the Lava Jato revelations reshaped the politics of major public works across the country.

Do this responsibly — and safely

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind defamation.** Publicly accusing a named person of a crime you cannot prove is legally dangerous (*calúnia, difamação*). Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through the Ministério Público, the CGU, the TCU, and the Polícia Federal in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers and sources — and yourself.** In high-conflict areas, exposing corruption can carry real personal risk; use the protection channels in Section 9.
- **Don’t cry “corruption” without evidence.** Calling ordinary, lawful bias (Section 9) “corruption” destroys your credibility and can expose you to a claim. Keep the two separate — which is exactly why they are separate sections here.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys and map human occupation (Step 2); form or partner with an association and start one-to-ones (Step 3); prepare for the **audiência pública** and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record beginning.

Months 2-3 — Public Launch: baseline complete; community meeting + objections at the hearing + a first complaint to the **Ministério Público** (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, objections on the record, the MP alerted, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **EIA** and cumulative effects (Step 2); expand the coalition and bring in an NGO/university and an Indigenous/quilombola organisation (Step 3); the MP considers an **inquérito civil** (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, the MP engaged, coverage expanding.

Months 4-6 — Expansion + Health Data: health/livelihood report (Step 2); sustained acts (Step 3); the decision on the **Licença Prévia** (Step 4); expert press events (Step 5). *Outcome:* possible refusal or strict **condicionantes**, quantified impacts, regional media.

Months 6-9 — Escalation + Challenge: acts escalating (Step 3); if licensed, a **ação civil pública** (via the MP or an association) and a **liminar**, with a plan for a possible **suspensão de segurança** (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, court process live.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearing / positioning (Step 4); media momentum (Step 5). *Outcome:* licensing + opposition + media + law compound; suspension, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — “the **consulta prévia** was not carried out,” not “we oppose the project.”
2. **Multi-tactic pressure** — objections + opposition + media + the Ministério Público + legal, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout; keep people safe.
4. **Documentation first** — build the evidence (including who lives on the land), then object and litigate on it.
5. **Coalition building** — 5-10 diverse groups; respect Indigenous and traditional communities’ own protocols.
6. **Trigger the Ministério Público early** — the single most powerful, lowest-cost lever in Brazil.
7. **Use the legal levers** — consultation, unlawful siting, and a deficient **EIA** are often the strongest cards.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal, shelving, or annulment is the bonus; expect the **suspensão de segurança** on strategic projects.
9. **Persistence and safety** — plan for 12-24 months (and possibly several courts), keep momentum, and protect defenders.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving (conflict or leadership problem); no media coverage for 2-3 months; the case stalling or a **suspensão de segurança** looming; fundraising below half your target by month 6; a core organiser leaving without a successor; threats against organisers (treat as a safety emergency — see Section 9); or someone new pushing illegal or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Licence refused / shelved / project cancelled** (rarer): usually needs overwhelming opposition + a strong legal or consultation case + heavy media + the Ministério Público + lower tilt. São Luiz do Tapajós (shelved) shows it happens.
- **Licence modified** (most common victory): strict **condicionantes**, real consultation and compensation, buffers, independent monitoring, redesign — often via the agency, a **TAC** with the Ministério Público, or a court.
- **Delay / attrition:** stalled for years while licensing and litigation run; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat:** the project proceeds (sometimes via a **suspensão de segurança**, as at Belo Monte). Focus then shifts to enforcing **condicionantes** and compensation, monitoring compliance, and the next opening.

Why It’s Worth It — Even If You Ultimately Lose

Be honest with your community about the odds — and equally honest about what the “secondary” outcomes are actually worth, because they are not consolation prizes:

- **Conditions and monitoring protect bodies for decades.** Buffers, emission controls, closure funds, independent monitoring with public data — these are measured in children’s health and the water people actually drink, for the life of the project. Every binding condition you force is future harm partially averted.
- **Delay is real harm avoided — and real leverage.** Every year a project stalls is a year the land and the livelihoods run — and delay compounds against the proponent: financing costs, aging forecasts, expiring permits, changing governments. Some “delayed” projects simply never come back.
- **The organization outlives the fight.** The coalition, the trained monitors, the relationships with lawyers and journalists — that infrastructure fights the next application, the next route, the next permit renewal. Communities that fought “losing” battles are the ones that win the next one.
- **You change the rules for everyone.** Campaigns in this guide lost projects and won statutes, precedents, and reformed procedures the whole country then uses. Fighting at the level of one project builds law at the level of all of them.
- **You raise the price of the next project.** A proponent that spent years and a fortune on your fight prices community resistance into every future plan — and sometimes walks away before starting. Deterrence is invisible and real.

- **Compensation and dignity are not nothing.** Where harm proceeds, documented communities win remediation, compensation, and terms silent ones never see — and a community that fought knows itself differently afterward. Agency, once exercised, doesn't un-learn.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live, the Ministério Público is engaged, opposition is holding or growing, media is at least monthly, the coalition is stable, and organisers are safe. **Modify** if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the system is more tilted than assessed. **Reassess** if, after ~12 months (and perhaps a first court and a **suspensão de segurança**), licensing and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone — or if the personal risk to organisers has become unacceptable. Ask: has opposition already won partial victory (conditions, compensation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to changing the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Brazil — even where jobs, **royalties**, and “strategic project” politics point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, before the **Ministério Público**, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers suspensions, conditions, compensation, delay, and durable power.

And Brazil offers genuine equalisers: a constitutionally independent **Ministério Público** that litigates for free, the constitutional protection of Indigenous lands, the **consulta prévia** right under ILO Convention 169, the **ação popular** open to any citizen, courts that can suspend an unlawful licence — and, when a project truly cannot be made lawful and viable, the possibility of outright shelving, as at São Luiz do Tapajós.

Know your situation. Assess how tilted the system is, honestly. Watch for genuine corruption and refer it to the Ministério Público and the control bodies. Keep organisers safe. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.

Nothing here is legal advice. The licensing rules changed in 2025 (Law 15.190/2025) and parts are under challenge at the STF, and deadlines and procedures vary by state — get current advice from an environmental lawyer, the Defensoria, or the Ministério Público before relying on this.